

		Defendant became an occupant of the premises, which are issues to be determined in a trial. The Court OVERRULES the Demurrer. Defendant is ordered to file an Answer within 5 calendar days. Plaintiff is ordered to serve notice of the Court's ruling.
ExParte	30-2026-01569971 CJS Pinemeadows Apartments, L.P. vs. Alexander Gonzales	The Court has read and considered the Plaintiff's Ex Parte Application for an Order Striking Prejudgment Claimants Fantina Velazquez and Miguel Zaragoza's Answer to the Complaint (ROA 41). The Plaintiff failed to attach "Exhibit A" as referenced in their moving papers. The Court takes Judicial Notice of the Proof of Service of Summons & Complaint – Unnamed Occupants (ROA 12), Complaint (ROA 2), Prejudgment Claim of Right to Possession filed by Miguel Zaragoza (ROA 15), and Prejudgment Claim of Right to Possession filed by Fantina Velazquez (ROA 13) The Proof of Service of Summons & Complaint – Unnamed Occupants (ROA 12) shows that a registered process server substitute served Occupant Yesenia Cruz Lara on Monday, May 18, 2026, at 9:33 PM, in addition to posting the documents "in a conspicuous place on the premises so that likely to give actual notice to an occupant" and mailed the documents on the same date. Prejudgment Claims of Right to Possession were filed by Miguel Zaragoza and Fantina Velazquez on June 3, 2026. The CP10.5 Form for the Prejudgment Claim to Right to Possession states that forms must be submitted within 10 days from the date of service. The last day to file the Prejudgment Claim to Right of Possession form would have been May 28, 2026, by 11:59 PM. The Court finds that Claimants Fantina Velazquez and Miguel Zaragoza failed to timely file a prejudgment claim of right to possession with the Court and therefore each of their Answers will be stricken. The Court Clerk is directed to strike the Prejudgment Claims filed by Fantina Velazquez and Miguel Zaragoza on June 3, 2026, as untimely and strike their Answers. The Plaintiff is ordered to provide notice of the Court's ruling to all parties, as well as Fantina Velazquez and Miguel Zaragoza.